

Court No. - 42

Case :- WRIT - C No. - 4285 of 2023

Petitioner :- Mrs.Rajendra Kumar Sharma Stone Creaser Gonda

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Kaushal Kishor, Archana Devi, Bhanu Pratap Singh

Counsel for Respondent :- C.S.C., Gaurav Singh

Hon'ble Suneet Kumar, J.

Hon'ble Rajendra Kumar-IV, J.

Heard learned counsel for the parties.

Petitioner, a licensee of a Stone Crusher Mill, by the instant writ petition seeks restoration of electricity supply.

Learned counsel appearing for the third and fourth respondent on instructions submits that the premises of the petitioner was inspected and theft was found at 78.93 KW, over and above the sanctioned load. Consequently, vide provisional assessment order dated 17 December 2022, the petitioner was assessed at Rs. 85,74,459/-. It is also informed that an F.I.R. has been lodged against him. The petitioner has suppressed all these material facts in the writ petition.

In the circumstances, this Court is not inclined to interfere in the matter involving disputed question of facts. The writ petition being devoid of merit is, accordingly, **dismissed**.

Petitioner has a remedy to file objections under Paragraph 6.8 of U.P. Electricity Supply Code, 2005. The petitioner is at liberty to approach the competent authority for supply of electricity on terms and conditions, to the satisfaction of the respondents.

It is clarified that the Court has not entered into the merit, as well as, the rival contentions of the respective parties.

Order Date :- 17.2.2023

Mukesh Pal